

UNIFICATION



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DEFINING MOMENT: (R-L) Nehru, Abdullah, Hari Singh and Baldev Singh at a meeting in Kashmir in 1947

Dawn of DISSENT

The unification of the state of J&K with India was and remains a highly-emotive issue which still reverberates in the treatment of minorities and the country's federal structure

■ By Sumit Ganguly

No other issue involving India's federal structure remains as fraught and contentious as the relationship of Jammu and Kashmir (J&K) with the Indian union. Sixty years since Independence, the state is still accorded a special status under Article 370 of the Indian Constitution. In its original form, the article granted India's only Muslim-majority state an unprecedented degree of autonomy, confining the writ of the Central government to defence, foreign affairs and communications. The article also permitted the state government to determine which features of the Constitution could be extended to Kashmir. The ex-

tent to which this article has been implemented in good faith, however, remains a matter of debate.

The terms of this debate need to be spelt out. Some believe the erosion of the provisions of Article 370 is both inevitable and desirable. They contend, since the first state assembly in 1954 ratified the accession of Kashmir to India, there is little reason to maintain the state's unique status. They hold that the effacing of this distinctive status will ensure the complete (and desirable) integration of the state into India. Others contend that unless the inhabitants of the state choose to dispense with their particular constitutional status, the Central